Informed decision-making in public private partnerships for physical activity and healthy diets

World Health Organization
South-East Asia Region

ISBN: 9789290222651

Executive Summary

As noncommunicable diseases (NCDs) in the Region continue to rise—largely due to modifiable risk factors such as tobacco use, alcohol consumption, unhealthy diets and physical inactivity—strategic partnerships are increasingly necessary but complex. While private-sector engagement can offer financial resources, technical expertise and innovation, it also poses significant risks, including conflicts of interest, weakened public health regulation, power imbalances, and the legitimization of industries that contribute to ill health. When exploring and implementing such partnerships, public health objectives must always be paramount, underpinned by robust governance and rigorous due diligence processes including clear 'go/no-go' criteria to safeguard against commercial interests undermining public health.

This brief offers a structured framework to guide informed decision-making by Member States in the South-East Asia Region where engaging the private sector may take place, to promote healthy diets and physical activity. It is based on the WHO tool 'Supporting Member States in reaching informed decision-making on engaging with private sector entities for the prevention and control of noncommunicable diseases, A practical tool [1]. This technical brief aims to provide Member States with a framework and guidance to make informed decisions on private sector engagement to promote healthy diets and physical activity.

1 Private sector engagement in public health actions to promote healthy diets and physical activity

Private sector engagement (PSE) in public health includes a range of interactions, from formal partnerships—such as memoranda of understanding and joint projects—to informal collaboration, including information sharing, advisory roles, sponsorships, and donations. Engagement is often pursued to leverage private sector resources, including financing, technical expertise, innovation, and human capital, to address complex public health challenges. However, significant risks arise when engagement involves sectors whose products or practices—such as unhealthy foods and beverages, breast-milk substitutes, alcohol and tobacco—directly contribute to disease burdens. In these contexts, inherent tensions exist between public health objectives and commercial interests, requiring careful risk assessment and management.

Identifying the rationale for informed engagement

Any engagement being considered must recognize both its potential contributions and inherent risks. The focus of such engagement should be on maximizing potential benefits while effectively mitigating the risks, if any.

The food, non-alcoholic beverage, and physical activity sectors present distinct public health challenges [2]. Companies that produce or promote foods that contribute to unhealthy diets often have inherent conflicts of interest, as their profits depends on consumption patterns that fuel the NCD burden. Some seek to shift attention toward physical inactivity by supporting activity initiatives, potentially deflecting scrutiny from foods contributing to unhealthy diets [3]. While evidence on public–private partnerships remains limited, collaborations may yield useful results. However, substantial risks in the form of conflicts of interest and reputational "whitewashing" remain [3].

Potential benefits, opportunities, critical concerns and risks of public sector engagement with the private sector

Potential benefits, opportunities	Critical concerns and risks
The private sector can **drive innovation** by developing health technologies (e.g., apps and activity-tracking wearables), investing in physical activity infrastructure, and improving food systems through healthier product formulations and more sustainable supply chains. Private entities have substantial financial **resources**, technical expertise in areas like logistics, supply chain management and communication.	Conflicts of interest (CoI) occur when commercial interests risk compromising public health objectives at the individual, institutional or government level. CoI may be actual, potential or perceived, and can undermine trust and decision-making. When conflicts exist, public health interventions may be weakened, as private sector partners can prioritize commercial goals over health outcomes. In practice, this may lead to pressure for weaker regulation or a preference for voluntary, industry-led approaches over stronger, evidence-based public health measures.
Leveraging established private sector distribution networks and marketing expertise can **expand the reach** and impact of healthy population level campaigns, particularly to underserved populations.	**"health washing" or "white washing"**, where industry with products harmful to health engages in public health initiatives to improve its public image, and diverts attention from detrimental commercial practices. Health washing can make companies appear socially responsible while continuing to profit from products that undermine public health. A **lack of transparency** in partnership agreements, funding, and evaluation can conceal commercial agendas or allow for subtle influence that is not easily detectable and erode public trust.

2 Ethical and governance requirements

All private sector engagements must be governed by the principle that public health interests must take precedence. Robust governance frameworks to protect public health goals, ensure integrity and independence, and prevent undue commercial influence are essential. Government entities must adhere to codes of conduct that prevent any engagement from compromising their public health mandates.

3 Guiding principles and framework for engagement

Clear guiding principles and a systematic due diligence process is required for an effective framework for engaging with the private sector. All engagements must unequivocally advance public health objectives, not commercial ones, and add value to the public health response. Public health bodies must rigorously maintain their autonomy and independence from commercial interests. Agreements must clearly define the roles, responsibilities, and mechanisms for oversight and performance review for all parties involved.

4 How to determine whether to proceed with a public private partnership ?

Deciding whether, when, and under what conditions to engage with a private-sector entity should rely on a systematic assessment of key aspects of the potential collaboration using the best available information. The WHO tool provides a methodology for evidence-informed decision-making through a three-phase process [4].

Phase 1 – Assess

The assessment determines whether private-sector engagement should be considered as a viable option to support national NCD responses. In this phase, the potential objectives and purpose of an engagement are defined, relevant private-sector actors are identified and categorized, and the most suitable engagement mechanism is selected. It also involves determining which private-sector resources could be mobilized. Phase I is further supported by an assessment of the public sector's current capacity to manage such engagements.

The assessment would include the following reflections:

- context-specific pressing factors in considering private sector engagement.
- Purpose
- Type of engagement , and local environment for engagement.

Phase 2 – Analyse

Users analyse a specific engagement opportunity with an identified private sector actor if the prospective collaborator meets the criteria to be considered a legitimate stakeholder through a due diligence process, including assessment against exclusion criteria.

Due diligence is a systematic and ongoing process that supports informed strategic decision-making before entering an engagement. It helps identify potential financial, legal and operational risks; assess alignment between a partner's values and public health objectives; protect institutional reputation; and ensure decisions are based on a clear and factual understanding. Due diligence strengthens accountability and safeguards public interest. While some countries or entities may already have established frameworks, the process outlined below provides practical guidance that can be adapted as needed.

Risks are the expression of the likelihood and potential impact of the occurrence of an event that can affect an organizations ability to achieve its objective- can include conflicts of interest or reputational risks.

The following steps must be completed

- Identify and analyze potential Conflicts of Interest (CoI) - This includes the declaration of institutional and individual CoI from both public and private entities.

- Assess reputational risks - Evaluate potential reputational risks for the public health institution, considering the private entity's past corporate practices and public perception.
- Critically evaluate business model alignment - determine if the private entity's business model and products genuinely align with public health goals or if they present inherent contradictions. Companies whose core business promotes unhealthy products should be generally excluded from partnerships, and only considered when there is no viable alternative, and with robust safeguards in place. Examples of guidance on conflicts of interest with private sector industries are given by WHO [5].

Key due diligence questions to be considered

> **Does the partner's core business and overall product portfolio genuinely align with public health nutrition principles, or does it significantly involve unhealthy diets ?**

> **Are there any declared CoI at individual or institutional levels?**

> **Could the engagement be perceived as "health washing" or legitimizing an industry ?**

> **What's the verified record of the entity on ethical marketing (especially to children), lobbying against public health policies, transparency, and adherence to guidelines ?**

> **What are the potential reputational risks to the government or public health institution?**

> **Can robust safeguards (e.g., firewalls, non-endorsement clauses) be put in place to fully prevent negative commercial influences on public health policy or programs?**

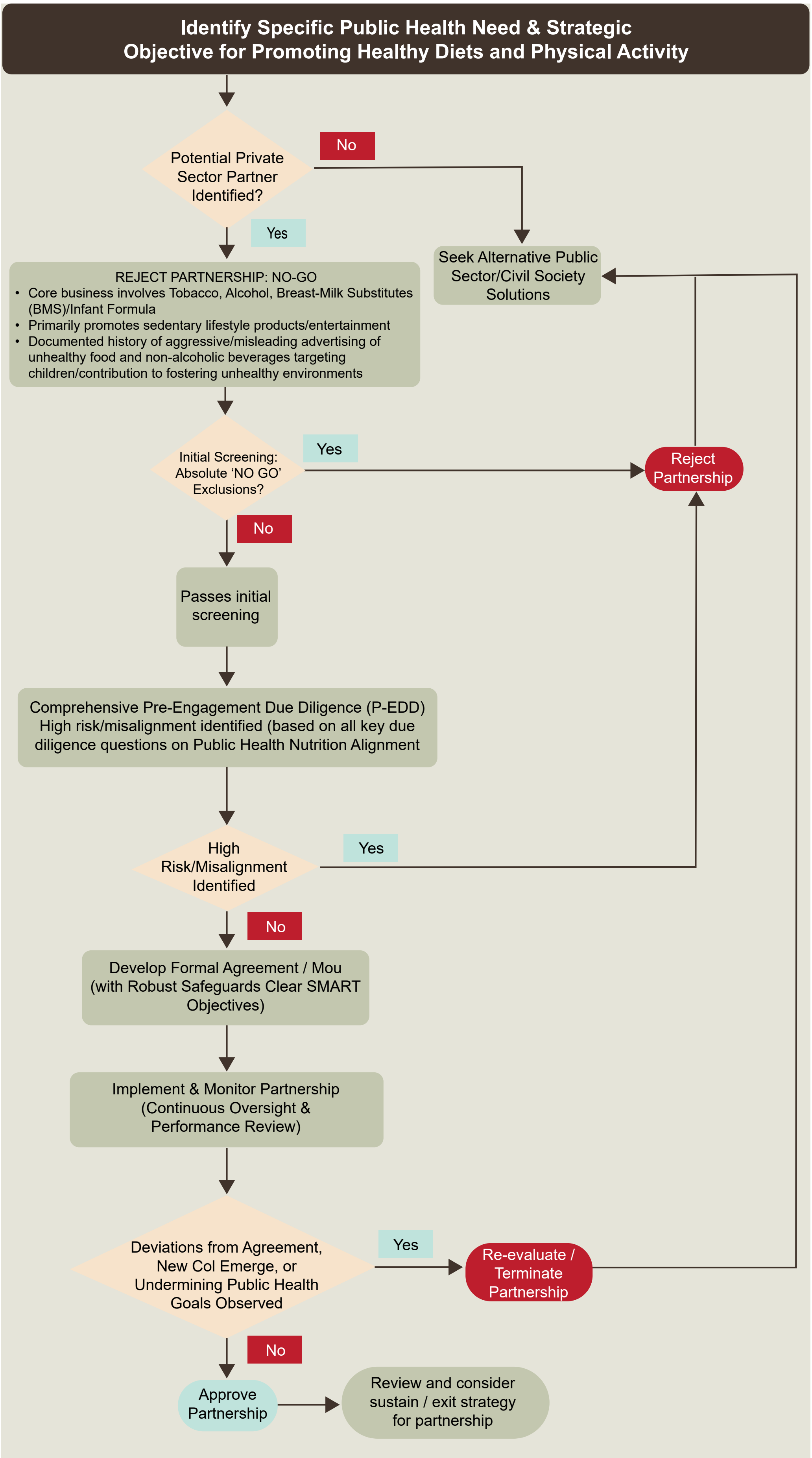
> **How does the company's wider corporate strategy genuinely contribute to fostering healthy food and physical activity environments ?**

- After completing due diligence and profiling, conduct a risk assessment of the potential engagement:
  - identifying risks
  - assessing their likelihood and impact
  - determining overall risk magnitude and priority
  - defining appropriate risk mitigation measures.

Phase 3 – Decide

Utilize the information gathered and analyzed in phases I and II to make a conscious – and reach an explicit – decision on whether to proceed, or not, with the engagement opportunity.

Figure 1. Decision-Making Framework / Decision Tree for Public-Private Engagement for Healthy diets and physical activity



5 Practical actions for implementing a public-private partnership (PPP)

Initial actions

- Establish clear, objective criteria - to guide 'go/no-go' decisions based on the thorough due diligence findings.
- Stakeholders - Decision making should involve a broad range of stakeholders, including relevant government ministries, public health experts, and civil society organizations. Establish a central, multi-stakeholder committee to enhance transparency and incorporate diverse perspectives, thereby strengthening the decision-making process.
- Utilize established tools - Use and adapt established resources, *e.g. WHO's 'Supporting Member States in reaching informed decision-making on engaging with private sector entities for the prevention and control of noncommunicable diseases: a practical tool'* [Annex B: Questionnaire for users] or other frameworks. This ensures a consistent and systematic approach to all potential engagements.
- Formulate and enforce clear policies for decision-making, especially concerning engagements with unhealthy commodity industries, advocating for complete exclusion or highly restricted engagement of such entities to prevent CoI and protect public health.

Formalizing and structuring the engagement

Engagements must be formalized through written agreements (e.g., Memoranda of Understanding, contracts) with clear terms and conditions. These should include:

- Specific, Measurable, Achievable, Relevant, Time-bound (SMART) objectives
- Clearly defined roles, responsibilities, deliverables, and timelines for all parties
- Clauses on termination, intellectual property rights, and conflict resolution
- Strict prohibition of product endorsement, commercial exploitation of public health branding

Risk management, ethical considerations, monitoring, evaluation, and review

- Oversight - Implement mechanisms for continuous oversight to ensure adherence to established principles and objectives.
- Mandate regular reporting and performance review - to track progress, identify deviations, and address emerging conflicts or challenges. The frequency should be appropriate to the scale and risk of the engagement (e.g., quarterly, semi-annually).
- Troubleshooting – define objective criteria and procedures for addressing deviations from the agreement, managing new CoI, or partnership termination.
- Require transparent reporting - of all partnership agreements, funding sources, and outcomes to promote accountability and public trust.

Legal and policy considerations

- Leverage existing National laws - for preventing CoI, which may apply broadly to public officials and government engagements.
- Policies and guidelines – advocate, develop and implement complementary policy measures and specific guidelines tailored to public health engagements with the private sector, drawing on international best practices.

- Comprehensive training- for public officials on due diligence, risk assessment, partnership negotiation, ethical considerations, and CoI management.
- Identify and connect with stakeholders
- Ministry of Health, other relevant ministries to lead the policy development and oversight
- Public Health experts and academia for technical guidance and independent assessment
- Civil Society organizations as watchdogs, advocate for public interest, and provide community perspectives
- Legal Departments to provide guidance on contractual agreements and legal frameworks and regulatory bodies to ensure compliance with existing laws and standards

Safeguard policy development

- Safeguard policy development - Ensure health policies are developed free from commercial influence, including through firewalls between industry and policymakers and the use of independent experts.
- Share best practices - Facilitate platforms for Member States to share experiences, good practices, and challenges in managing private sector engagements.

6 Conclusion

The central challenge is to harness private sector resources and innovation while protecting public health from commercial influence and conflicts of interest. Principled, well-governed, and continuously monitored engagement—supported by strong due diligence, clear governance, and transparency—enables Member States to maximize benefits and manage risks. Such an approach supports ethical, effective partnerships and contributes to healthier populations in South-East Asia and beyond.

Acknowledgements

This work was strategized and coordinated by Dr Angela de Silva, Regional Adviser, Nutrition and Physical Activity, WHO South-East Asia Region, and developed by Prof. Tharanga Thoradeniya, external consultant.

References

1. World Health Organization 2024. Supporting Member States in reaching informed decision-making on engaging with private sector entities for the prevention and control of noncommunicable diseases: a practical tool. https://iris.who.int/server/api/core/bitstreams/d0ce2ca8-270b-4abb-95d5-de7cb2991155/content
2. Gaupholm, J., Papadopoulos, A., Asif, A., Dodd, W., & Little, M. (2023). The influence of food environments on dietary behaviour and nutrition in Southeast Asia: A systematic scoping review. Nutrition and Health, 29(2), 231-253.
3. Jáuregui, A. (2022). Physical Activity Promotion as a Means to Foster Human and Planetary Health: The Need to Avoid Potential Conflicts of Interests With Unhealthy Commodity Industries. Journal of Physical Activity and Health, 19(6), 401-403.
4. McKevitt S, White M, Petticrew M, Summerbell C, Vasiljevic M, Boyland E, et al. Typology of how 'harmful commodity industries' interact with local governments in England: a critical interpretive synthesis. BMJ Global Health. 2023;8:e010216. https://doi.org/10.1136/bmjgh-2022-01021.
5. Preventing and managing conflicts of interest in country-level nutrition programs: a roadmap for implementing the WHO's draft approach in the Americas. Washington (DC): Pan American Health Organization; 2021 (https://iris.paho.org/handle/10665.2/55055,

9 789290 222651